IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-1
CA (CAA) No. 05/230/232/ND/2022

IN THE MATTER OF:
Puresoftware Pvt. Ltd. And Puresoft Technologies Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 10.02.2022**

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI AVINASH K. SRIVASTAVA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

The matter was listed today for clarifications. The applicant is directed to clarify the following points:-

i. In the Scheme of Arrangement it has been stated that all the assets and liabilities of Software Development and Service Business undertaking of De-merged Company will be transferred into Resulting Company and as consideration for the Scheme the Resulting Company will allot equity shares to the equity shareholders and preference shares to the preference shareholders of the de-merged company at following rates:-

   a. One equity share of Rs. 1/- each of the Resulting Company will be issued and allotted for every one equity share of Rs. 1/- equity each held in the De-merged Company.

   b. One compulsorily convertible preference share of Rs. 122/- each will be issued and allotted for every 100 compulsorily

convertible preference share of Rs. 122/- each held in the De-merged Company.

As the issued share capital of the De-merged Company is Rs. 2,97,95,317/- divided into 2,96,73,317 equity shares of **Rs. 10/-** each (this appears to be a mistake, it shall be Rs. 1/- each; this may be clarified) and 1000 preference shares of Rs. 122/- each, therefore, the share capital of the Resulting Company will have to be increased. How much will be the new share capital of the Resulting Company; has not been indicated in the Scheme.

ii. The application mentions that the objects of the De-merged Company as set out in its Memorandum of Association is the same as set out in the Resulting Company, therefore, what work will remain with the De-merged Company after the transfer may kindly be clarified.

The above information will be submitted by a supplementary affidavit within one week from today. List the matter on **17.02.2022.**

Sd/-

(AVINASH K. SRIVASTAVA)
MEMBER (T)

Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)